



Notification Waiver Determination

Bain Capital – Everllence

Acquisition	Funds managed and/or advised by Bain Capital Investors, LLC (together, Bain Capital) propose to acquire 51% of the shares and voting rights in Everllence SE (Everllence) and a number of its direct and indirect subsidiaries (together, the Everllence Group) from Volkswagen Vermögensverwaltungs-GmbH, a wholly owned subsidiary of Volkswagen Aktiengesellschaft (together, Volkswagen) (the Acquisition). Bain Capital together with its wholly owned special purpose vehicle Nikolaus (BC) Bidco GmbH (Nikolaus) applied for a notification waiver in respect of the Acquisition.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	3 August 2026

Parties to the Acquisition	The acquirer, Nikolaus, is a special purpose vehicle that is ultimately controlled by Bain Capital. Bain Capital is a private investment firm with its registered office in Boston, USA, that invests in companies across a number of industries, including information technology, healthcare, retail and consumer products, communications, financial services and industrial/manufacturing. The target, Everllence, headquartered in Augsburg, Germany, is the parent company of the Everllence Group and operates globally through its subsidiaries as an engineering company specialising in propulsion and energy solutions for maritime, energy and industrial applications. It develops and manufactures engines, turbomachinery and propulsion systems, with a focus on decarbonisation technologies and efficiency solutions. Everllence also provides lifecycle services including maintenance and performance optimisation through its global service network.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular, there is no horizontal overlap or vertical relationship between Bain Capital (or its connected entities) and Everllence in the supply of propulsion and energy

	solutions for maritime, energy and industrial applications in Australia. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**